

LW5620: INTERNATIONAL TRADE REGULATION

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

International Trade Regulation

Subject Code

LW - Law

Course Number

5620

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

LW4620 International Trade Regulation

Exclusive Courses

LW6144E World Trade Law

Part II Course Details

Abstract

This course aims to

- provide students with a critical understanding of the law and policy of modern international trade agreements with an emphasis on the legal regime of the World Trade Organization (WTO), the successor to the General Agreement on Tariffs and Trade (GATT).
- expose students to the complex intersections between the regulation of international trade and domestic regulatory authorities, and the interface between law, politics and public policy that emerges in international trade negotiation and dispute settlement.
- encourage students to identify and search for an appropriate understanding of the current issues in the rules-based multilateral trading system.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Identify, describe and synthesize the principles relating to the multilateral trading system	50	x	x	x
2	Apply the rules of international trade law to complex fact patterns	30	x	x	x
3	Develop the skills to analyse evaluate, and reflect critically on current legal and economic problems of the international trade system	20	x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	Lectures	Students will engage in formal lectures to gain knowledge about international trade law	1	2 hours/week or a total of 26 hours of block teaching
2	Interactive class discussion	Students will learn how to apply the law to cases. Students will also be engaged to participate in debates to develop a critical view on the strengths and deficiencies of international trade law	2, 3	1 hour/week or a total of 13 hours of block teaching

Assessment Tasks / Activities (ATs)

	ATs	CILO No.	Weighting (%)	Remarks ("- " for nil entry)	Allow Use of GenAI?
1	Classroom participation	1, 2, 3	10	-	No
2	Group assignment	1, 2, 3	20	-	No

Continuous Assessment (%)

30

Examination (%)

70

Examination Duration (Hours)

2

Minimum Continuous Assessment Passing Requirement (%)

0

Minimum Examination Passing Requirement (%)

40

Additional Information for ATs

The use of Generative AI tools is not allowed.

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

Students must obtain a minimum mark of 50% in both continuous assessment and examination and an overall mark of 50% in order to pass the course.

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 and thereafter

Students must obtain a minimum mark of 40% in both continuous assessment and examination and an overall mark of 40% in order to pass the course.

To ensure fair and comprehensive assessment of students' course performance, the pass mark requirement for the CA component will be waived for courses with a CA component equal to or less than 30%. This means students only need to achieve the pass marks for the final exam component AND the overall mark to pass the course. Continuous assessment for this purpose means those ways in which students are assessed otherwise than by the end of semester examination.

Assessment Rubrics (AR)**Assessment Task**

Continuous Assessment: (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Demonstration of ability to identify issues;
Application of knowledge to specific problems and discussion questions.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Examination (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Demonstration of ability to identify issues;
Application of knowledge to specific problems and discussion questions.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

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(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Continuous Assessment: (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Demonstration of ability to identify issues;
Application of knowledge to specific problems and discussion questions.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Examination (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Demonstration of ability to identify issues;
Application of knowledge to specific problems and discussion questions.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Part III Other Information

Keyword Syllabus

World Trade Organization, Dispute Settlement, Tariffs, Non-discrimination, Trade Protectionism, Trade Remedies, Technical Barriers to Trade, Free Trade Agreements

Detailed Syllabus

The following topics are studied in detail:

- a. The history and institutions of the multilateral trading system
- b. Dispute settlement system of the WTO
- c. Tariffs and non-tariff measures
- d. Non-discrimination principle
- e. General exceptions
- f. Safeguards
- g. Anti-dumping
- h. Subsidies and countervailing measures
- i. Agreement on technical barriers to trade
- j. Agreement on the application of sanitary and phytosanitary measures
- k. Free trade agreements

Reading List**Compulsory Readings**

Title	
1	Essential Readings (Recommended Textbooks)
2	Peter Van Den Bossche and Werner Zdouc, The Law and Policy of the World Trade Organization (5th ed, Cambridge University Press, 2021)
3	Andrew T. Guzman and Joost Pauwelyn, International Trade law (Wolters Kluwer, 2009)
4	Simon Lester, Bryan Mercurio and Arwel Davis, World Trade Law: Text, Materials and Commentary (3rd Hart Publishing, 2018)

5	Mitsuo Matsushita, Thomas Schoenbaum, Petros Mavroidis and Michael Hahn, <i>The World Trade Organization: Law, Practice, and Policy</i> (3rd ed, Oxford University Press, 2015)
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Additional Readings

	Title
1	Recommended Journals
2	Journal of International Economic Law
3	Journal of World Trade
4	World Trade Review
5	American Journal of International Law
6	Journal of World Investment & Trade
7	Legal Issues of Economic Integration
8	The World Economy
9	European Journal of International Law
10	Recommended Podcasts
11	Trade Talks
12	Tradecraft
13	Dollar & Sense
14	The Trade Guys
15	ECIPE Global Economy Podcast
16	Trade Bites
17	Recommended Websites
18	WTO official website: www.wto.org
19	International Economic Law and Policy Blog: https://worldtradelaw.typepad.com/
20	Brookings Institute (Trade Section): https://www.brookings.edu/topic/global-trade/
21	Peterson Institution for International Economics (Trade Policy): https://www.piie.com/research/trade-investment/trade-policy
22	Centre for Strategic & International Studies (Trade and International Business), https://www.csis.org/topics/economics/trade-and-international-business
23	Global Trade Alert: https://www.globaltradealert.org/reports